

#	Case Name	Tentative
		reduces the hourly rate for each support timekeeper to \$95/hour which the court finds to be commensurate with a reasonable hourly rate for litigation support work in this market for this type of matter. The Court credits the accuracy of Moving Party's time records. (See <i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-785.) However, the Court finds that the records include duplicative and non-compensable billing, and has reduced the hours to reflect that fact. The fee award has been reduced to reflect the number of hours reasonably spent to complete the tasks involved in this lawsuit, where no motion practice, pleadings challenges, depositions, or substantive court hearings were required. (See <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [no abuse of discretion where trial court reduced fee award to account for duplicative and unnecessary billing].) The Court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above. Plaintiff's memorandum of costs seeks recovery of reasonable and necessary costs and the full request of \$721.24 is GRANTED. The Court orders this case dismissed without prejudice with the Court retaining jurisdiction to enforce the terms of the settlement. Plaintiff shall give notice of this ruling.
55.	Jones v. Myers 2026-01542899	Plaintiff Desiree Jones' motion to quash the "wrongful Abstract of Judgment recorded by Defendant on or about May 6, 2026, with the Orange County Recorder's Office" is DENIED. A motion to expunge an abstract of judgment will not be granted on the ground that the judgment debtor currently owns no real property, because the lien validly attaches to after-acquired property interests and the absence of current property ownership is not a recognized basis for expungement of an otherwise proper abstract. (See Ca. Civ. Pro. Section 697.340(b) ("If any interest in real property in the county on which a judgment lien could be created under subdivision (a) is acquired after the judgment lien was created, the judgment lien attaches to such interest at the time it is acquired."); <i>O'Neil-Rosales v. Citibank (South Dakota)</i> (2017) 11 Cal.App.5th Supp.1, 8 ("Assuming plaintiff was correct and

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		[plaintiff] had no real property interest in the . . .property, [defendant]’s recording of the abstract did not create a real property lien against the . . .property.”)) Jones shall give notice of this ruling.
56.	Myron v. Fitness International LLC 2025-01531632	Defendant Fitness International, LLC’s Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED. Defendant demurs to the second cause of action for negligent hiring, supervision and retention. “California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (<i>McKenna v. Beesley</i> (2021) 67 Cal.App.5th 552, 566.) The FAC fails to allege the identity of any particular employee, the unfitness of said employee, what the employee did or did not do, or how the said employee’s actions caused harm to Plaintiff. (See CACI 426.) Plaintiff has not opposed the demurrer, and therefore has not demonstrated a reasonable possibility that the defect can be cured by way of a further amended complaint. Therefore, the demurrer to the second cause of action is SUSTAINED without leave to amend. Defendant shall give notice of this ruling.
57.		
58.	Rogers v. Guzman 2023-01301897	The claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers is GRANTED in part, in the amount of \$16,518.00, as exempt Social Security payments. (Code Civ. Proc., § 704.080; Claim of Exemption, ¶¶ 6, 8, and Attachment 6 thereto.) The remainder of the claims of exemption are DENIED, as claimants have not shown that the remaining levied funds are exempt. (Code Civ. Proc., §§ 703.080, subd. (b), 703.580, subd. (b) [claimants’ burden].) Judgment creditors shall give notice of this ruling.
59.	Rueda v. SKRT	The motion to consolidate is ordered OFF CALENDAR.